

resolution of these issues is what the parties bargained for in the arbitration agreement.” (*Ibid.*, quoting *Moshonov v. Walsh* (2000) 22 Cal.4th 771, 775-776)

A court must give substantial deference to an arbitrator’s own assessment of his or her contractual authority and must refrain from substituting its judgment for the arbitrator’s in determining the scope of the arbitration. (*Advanced Micro Devices, supra*, 9 Cal.4th at 372-373.) An arbitrator does not exceed his powers by failing to adopt a particular interpretation of the agreement or making a legally incorrect decision, even one that contradicts the parties’ agreement. (*Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 875-876.)

The arbitrator did not exceed his authority in limiting the scope of the arbitration. Regardless of whether the arbitrator erred (factually or legally) in concluding that the parties had stipulated to narrowing the scope of the arbitration, the arbitrator is generally authorized to determine questions of contract interpretation, facts, and applicable law and nothing in the arbitration agreement between the parties limits this authority. Because the arbitrator did not exceed his authority in limiting the scope of the arbitration, the excluded evidence was not material to the controversy before the arbitrator.

Defendant is entitled to interest as of the date of the final award. (*County of Solano v. Lionsgate Corp.* (2005) 126 Cal.App.4th 741, 753.) At ten percent per annum (Civ. Code § 3289(b)), the amount of accrued interest as of the date of the hearing is \$59,741.31.

Defendant is also entitled to attorneys’ fees incurred in postarbitration proceedings, which are to be determined in a subsequent motion presenting evidence of the amount and reasonableness of the fees incurred. (*Carole Ring & Assocs. v. Nicastro* (2001) 87 Cal.App.4th 253, 261.)

PEOPLE OF THE STATE OF CALIFORNIA v. \$10,176.00 U.S. CURRENCY
Case No. CU24-03869

Petitioner’s Motion to Strike Claim

TENTATIVE RULING

Petitioner PEOPLE OF THE STATE OF CALIFORNIA’s motion to strike Claimant REYNA RUEDA CASTANEDA’s claim opposing forfeiture of \$10,176 pursuant to Health and Safety Code section 11488.5 is denied without prejudice. The court instructed Petitioner to file a declaration detailing efforts to reach Claimant but no such declaration is on file. The court notes that the property potentially subject to forfeiture was seized from 127 N. First Street in Dixon, where per Petitioner’s allegations CASTANEDA had her residence and bedroom. Understanding that CASTANEDA listed her address on her claim opposing forfeiture as 127 W. First Street in Dixon, the court requires more

information as to Petitioner's efforts to locate Claimant and inform her of proceedings after finding that one letter to 127 N. First Street was returned as undeliverable

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